

HOUSE No. 4075

The Commonwealth of Massachusetts

PRESENTED BY:

Manny Cruz

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to enhancing emergency infant care response.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>1/16/2025</i>

HOUSE No. 4075

By Representative Cruz of Salem, a petition (accompanied by bill, House, No. 4075) of Manny Cruz relative to enhancing emergency infant care response. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to enhancing emergency infant care response.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111C of the General Laws is hereby amended by adding the
2 following section:-

3 Section 26. (a) For the purpose of this section, the following terms shall, unless the
4 context clearly requires otherwise, have the following meanings:

5 “Certified infant CPR responder”, any individual who has been formally trained and
6 certified in administering CPR specifically for infants by a recognized certifying body, including
7 but not limited to, the American Heart Association or the American Red Cross.

8 Dispatching authority”, any agency or organization responsible for dispatching
9 emergency first responders, including 911 operators.

10 “Infant”, a child aged 12 months or younger.

“Intervention”, any attempt to provide medical or physical care to an infant experiencing a life-threatening emergency.

(b)(1) The dispatching authority, upon receiving a call reporting an infant in respiratory distress, choking or otherwise requiring immediate CPR, shall prioritize the dispatch of 1 or more certified infant CPR responders to the scene. The dispatching authority shall notify all emergency personnel that the individual in need of immediate CPR is an infant.

(2) The dispatching authority shall maintain a registry of certified responders and ensure the availability of such responders for infant-related emergencies at all times.

(3) Emergency responders not certified in infant CPR may assist in other logistical capacities but shall not perform CPR on the infant unless directed by a certified responder due to exigent circumstances.

(4) The executive office of public safety shall create an infant CPR responder checklist that requires dispatchers and all emergency personnel to certify and confirm that a certified responder has been dispatched and that all responders are aware the individual in need of emergency medical services is an infant.

(c)(1) At the scene of an emergency involving an infant requiring CPR: (i) only certified infant CPR responders shall directly handle the care of the infant unless no certified responder is present or exigent circumstances exist; and (ii) non-certified individuals, including bystanders and other emergency personnel, shall be prohibited from intervening while a certified infant CPR responder is actively administering care, unless explicitly instructed by the responder.

(2) Any individual not certified in infant CPR who intervenes in the care of an infant during a life-threatening emergency shall be liable for any injury, harm or death that results from their intervention, except when acting under explicit direction from a certified infant CPR responder. Any individual who intervenes in violation of this paragraph shall be subject to civil liability for harm caused by their actions.

(d) Certified infant CPR responders acting within the scope of their certification and training shall be afforded legal protections under Massachusetts good samaritan laws pursuant to chapter 258C.

(e)(1) The department shall oversee public awareness campaigns to educate Massachusetts residents on the importance of certified CPR training, specifically for infant emergencies.

(2) All first responder agencies shall be required to maintain adequate staffing of personnel certified in infant CPR and provide training opportunities for existing personnel to obtain certification.

(3) All first responders, including EMTs, police officers and firefighters, shall be certified in CPR for infants as part of their training requirements pursuant to section 201 of chapter 111. Agencies shall ensure compliance with these standards and provide annual refresher courses.

(f) The department shall promulgate rules and regulations to ensure compliance with this section, including the development of training protocols for emergency dispatchers to appropriately identify and prioritize infant CPR emergencies.

51 SECTION 2. This act shall take effect 180 days after passage to allow for the
52 implementation of necessary training and dispatching protocols.